

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-28

WAY INTERGLOBAL NETWORK, LLC

COMPLAINANT,

v.

SHENZHEN UNIFELIX SCM LIMITED

RESPONDENT.

**UNOPPOSED MOTION FOR EXTENSION OF TIME TO
FILE BRIEF AND APPENDIX**

COMES NOW, Complainant, WAY INTERGLOBAL NETWORK, LLC, by its respective undersigned counsel, and pursuant to 46 C.F.R. §§ 502.69 and 502.102, hereby files its Unopposed Motion for Extension of Time to File Brief and Appendix (“Motion”) and in support thereof states as follows:

1. In compliance with the Revised Scheduling Order, Complainant filed its Exhibit List and Notice of Deposition Designations on August 24, 2023.
2. Complainant’s initial brief and appendix are due on August 31, 2023.
3. Complainant’s counsel resides in Jacksonville, Duval County, Florida.
4. Complainant’s counsel’s paralegal resides just south of Jacksonville in St. Augustine, St. Johns County, Florida.

5. Currently, Hurricane Idalia is forecast to make landfall as a major hurricane on the West Coast of Florida and track across Florida. On its current track, Duval and St. Johns Counties are expected to receive impacts from Hurricane Idalia including tropical storm force winds up to 65 mph, power outages, and isolated tornadoes. As it stands now, the courthouse and Clerk of Court in Duval County are closed from August 29 – August 31, 2023. It is unclear if Complainant's counsel or Complainant's counsel's paralegal will have power or internet this week due to the impact of Hurricane Idalia. If power and internet are lost, it is unclear when they will be restored based on experience from previous tropical storms and hurricanes because it depends on the location and severity of any downed lines or other weather conditions.

6. Additionally, Complainant's counsel's sole paralegal is a caregiver for her parents, including one parent who had a stroke 2.5 weeks ago and who is not legally cleared to drive should an emergency occur. The other parent generally does not drive. As such, Complainant's counsel's paralegal is the primary driver for the household at this time. If an emergency evacuation is required or an emergency arises due to Hurricane Idalia, she will be needed to care for her parents.

7. Finally, Complainant's counsel was also called on an emergency matter for another client on August 28, 2023 involving a fatality at the client's facility which requires his attention this week for the investigation and other related matters.

8. Monday, September 4, 2023, is a legal holiday.

9. Given the above, Complainant respectfully requests a short extension of time to file its brief and appendix until Friday, September 8, 2023.

10. 46 C.F.R. § 502.102(a) provides: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause. Motions must set forth the reasons for the

request and be received at least seven (7) days before the scheduled filing date. Motions filed less than seven (7) days before the scheduled filing date may be considered where reasonable grounds are found for the failure to meet this requirement.” It was not until August 28, 2023, that the track of Hurricane Idalia became reasonably certain, and the emergency involving the fatality did not occur until August 28, 2023. As such, reasonable grounds exist for failing to bring this Motion within the 7-day deadline contemplated by 46 C.F.R. § 502.102(a).

11. As referenced in the initial Scheduling Order for this matter, “Trial courts ‘have both the power and the duty to take measures to control their dockets and to ensure that counsel properly prepare cases scheduled for trial so that they can be tried and decided rather than continued and rescheduled.’ *Hornbuckle*, 732 F.2d at 1237...” *United States v. Hughey*, 147 F.3d 423, 430-31 (5th Cir. 1998). “The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).” *One Banana North America Corp., v. Hapag-Lloyd Ag and Hapag-Lloyd (America) LLC*, 2022 FMC LEXIS 453, *2 (granting joint request for a revised schedule). *See, also, One Banana North America Corp., v. Hapag-Lloyd Ag and Hapag-Lloyd (America) LLC*, 2022 FMC LEXIS 259 (granting motion to extend deadlines).

12. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondent discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement, on August 28, 2023 by email. Respondent agrees to the relief requested in this Motion provided a reciprocal extension of time is granted for Respondent to file its brief and appendix, which is unopposed by Complainant.

WHEREFORE, Complainant, WAY INTERGLOBAL NETWORK, LLC, prays that its Unopposed Motion for Extension of Time to File Brief and Appendix be granted.

MCLEOD BROCK LAW, PLLC



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CERTIFICATE OF SERVICE

I hereby certify that I have this 29th day of August, 2023, served the foregoing document upon Theodore H. Adkinson, Esq. (THA@tradeandcargo.com) by electronic mail, with a courtesy copy to judges@fmc.gov.



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